

SENATE BILL 2386

By Akbari

AN ACT to amend Tennessee Code Annotated, Title 49,
relative to adult education.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 49-6-409, is amended by deleting subsection (c) and substituting instead the following:

(c)

(1) A local board of education may contract for services with a nonprofit or for-profit entity for the operation and management of an adult high school.

(2) An adult high school operated by a nonprofit or for-profit entity under a contract with a local board of education must receive state and local school funding from the local board of education in accordance with subdivision (c)(4).

(3) A contract entered pursuant to this subsection (c) must:

(A) Provide the maximum enrollment for the adult high school;

(B)

(i) For the first year of the adult high school's operation, require the nonprofit or for-profit entity to provide the local board of education with the anticipated enrollment at least four (4) months before the adult high school opens for its first year of operations, which must not exceed the maximum enrollment set forth in the contract with the local board of education; and

(ii) For any subsequent year of the adult high school's operation, require the nonprofit or for-profit entity to provide the local board of education with its current enrollment numbers no

less than three (3) times per year, in the months of August, December, and April for purposes of subdivision (c)(4); and

(C) Require the local board of education to adjust payments to contracted adult high schools no less than three (3) times per year, in the months of October, February, and June, based on changes in revenue, student membership, or student services.

(4)

(A) A nonprofit or for-profit entity under a contract with a local board of education for purposes of this section must receive state and local school funding from the local board of education.

(B) For the first year of an adult high school's operation, the nonprofit or for-profit entity must receive state and local funding based on its anticipated enrollment, which must be adjusted according to the schedule established in the contract.

(C) For any subsequent year of an adult high school's operation, the nonprofit or for-profit entity must receive state and local funding based on its enrollment in the immediately preceding year, which must be adjusted according to the schedule established in the contract to reflect the updated enrollment numbers reported to the local board of education.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it, and applies to contracts entered into, renewed, or amended by a local board of education with a nonprofit or for-profit entity for the operation of an adult high school on or after that date.